

DISSENTING OPINION BY M. WEISS.

[*Translation.*]

I also, to my very keen regret, am unable, in the case now before the Court, to share the opinion of the majority of my colleagues.

The reasons which induce me to adopt this conclusion are briefly as follows :

The Peace Treaty signed at Lausanne, on July 24th, 1923, between Turkey and the Allied Powers, terminated completely and once and for all the régime established centuries ago known as the Capitulations which from the days of Francis I and until the conclusion of this Treaty had governed the legal and judicial relations between the Ottoman Empire and Christendom.

Article 28 of the Treaty is as follows :

“Each of the High Contracting Parties hereby accepts, in so far as it is concerned, the complete abolition of the Capitulations in Turkey in every respect.”

The new Turkey therefore finds herself freed from the hampering servitudes which for so long had placed her in a situation apart, in an inferior position amongst the nations ; she now becomes their equal, having like them no other sovereign than international law. And it is precisely this subjection to international law which is laid down in the Convention respecting conditions of residence and business and jurisdiction, concluded at Lausanne on the same day as the Peace Treaty.

The intention of bringing Turkish law into harmony with the international law, which has hitherto governed intercourse between the Western States, is in the first place announced in the preamble of this Convention : “Being desirous of prescribing, *in accordance with modern international law*, the conditions under which nationals of the other contracting Powers may settle in Turkey and Turkish nationals may settle in the territory of those Powers, as well as certain questions relating to jurisdiction,” etc.

This preliminary declaration is given full effect and put into practical application by, amongst others, Articles 15 and 17 of the Convention, which run as follows :

Article 15.—"Subject to the provisions of Article 16 [which relates to questions of personal status], *all* questions of jurisdiction shall, as between Turkey and the other contracting Powers, *be decided in accordance with the principles of international law.*"

Article 17.—"The Turkish Government declares that the Turkish Courts will ensure to foreigners in Turkey, both as regards person and property, protection *in accordance with international law and the principles and methods generally adopted in other countries.*"

Of those two clauses of the Convention of Lausanne only the first—namely Article 15—is of direct interest for the case before the Court. It follows from it that *in all cases*, that is to say, in criminal cases as well as in cases of civil and commercial law, conflicts of jurisdiction which may arise between Turkey and the other signatory States are to be settled in accordance with the *principles of international law.*

These principles—and it is quite certain that, as the Court has not failed to bring out, in this connection, the principles of general international law and no others are meant—, which are they in the present case and where are they written ?

The clause on which the judgment given against Lieutenant Demons appears with certainty to have been based, although no authentic copy of this judgment has been placed before us, belongs to Turkish municipal law ; it is Article 6 of the Criminal Code which has been taken from the Italian Code and runs as follows :

[*Translation.*]

"Any foreigner who commits an offence abroad to the prejudice of a Turkish subject, for which offence Turkish law prescribes a penalty involving loss of freedom for a minimum period of not less than one year, shall be punished by the Turkish Courts and in accordance with the Turkish Penal Code provided that he is arrested in Turkey. In such cases, the prosecution will only be instituted at the request of the Minister of Justice or on the complaint of the injured Party."

But this Article 6 is not, according to Article 15 of the Convention of Lausanne, self-contained ; it must, as regards relations between Turks and foreigners, be supplemented by, and read in the light of, the *principles of international law.*

Does international law authorize the application of Turkish law and the intervention of Turkish Courts for the repression of offences or crimes committed by a foreign subject outside Turkey, as is possible under the above-mentioned Article 6? Without attributing to the records of the preparatory work in such case a weight which might be disputed, I may well venture to recall that this was the claim put forward by the Turkish plenipotentiaries from the outset of the Conference of Lausanne. The amendment submitted by them at the request of Ismet Pasha leaves no room for doubt on this point: In Turkey—we read in this document—“the Turkish Courts will, in criminal matters, have jurisdiction over all charges arising in Turkey against nationals of the other contracting countries, out of crimes, offences or contraventions committed by them *in Turkey*, as well as over charges arising out of acts committed by them *in the territory of a third State*, and which, according to Turkish law, fall within the jurisdiction of those Courts. . . .”

This proposal the terms of which, it should be observed in passing, leave offences committed by a foreigner upon the *high seas* and not upon *the territory of a third State* outside the limits of the cases expressly provided for therein, induced the British Delegate, Sir Horace Rumbold, to make a strong protest: he declared that it could not be accepted; and his French and Italian colleagues added their reservations in this regard to his. In view of this opposition Turkey did not insist, and Article 15 was drafted in its final form. From the absence of any reference in this article to the jurisdiction of the Turkish Courts to take cognizance of crimes or offences committed by foreigners on foreign territory, it therefore follows that no such jurisdiction was recognized as being a rule of international law.

Being unable to find any support for her claim in treaty law, Turkey considerably enlarged the field of discussion; she had recourse to the general principles of international law; she pleaded the *sovereignty of States upon which this law is based*.

Every State, she claimed, and Turkey herself from the time of the annulment of the servitudes which have for so long been a burden upon her international life, is *ipso facto sovereign*; this implies that she can do as she thinks fit as regards persons or things unless a specific provision in a treaty or an established custom in international relations prevents her from so doing. This power is thus in its essence unlimited, and it implies as regards the young Turkish Republic, if no prohibition prevents its being exercised,

an absolute right of jurisdiction over the high seas, as well as over such of her nationals as may be upon foreign territory as residents or as visitors, and even over foreigners living abroad who may have been guilty of an offence injurious to Turkey or to one of her subjects.

In support of this contention and of the inferences which she deduced therefrom especially in reference to the *Lotus* case, Turkey has also, with the aid of numerous quotations from authors and judicial decisions, taken from the theory and practice of many countries, brought forward a certain number of considerations or systems which, in her view, demonstrate that the proceedings instituted at Stamboul against the French officer Demons, and the sentence which was rendered against him, not only did not contravene any prohibition in international law, but were besides entirely in conformity with the practice universally followed by States. It was thus that she endeavoured to rest the jurisdiction of the Turkish Court in this case upon the duty of protection which was alleged to be incumbent upon every State as regards its nationals in foreign territory ; or upon the localization of the facts constituting the offence of causing the collision, on the ship that was sunk ; or finally upon the principles followed in the legislation of many countries and by French legislation in particular, relating to "connected" offences (*infractions connexes*).

Without entering at the present moment into the details of this threefold argument which the Court has, moreover, taken care not to endorse entirely, it will be sufficient for me to observe that the Turkish Government, had it been quite certain that its contention was supported by international law, would no doubt not have thought it necessary to bring forward in addition more or less disputable reasons and theories, which could only weaken the force of the contention pleaded in its name, by revealing its weak points.

The fundamental error of this contention is its endeavour to find sources of international law in places where they do not exist. International law is not created by an accumulation of opinions and systems ; neither is its source a sum total of judgments, even if they agree with each other. Those are only methods of discovering some of its aspects, of finding some of its principles, and of formulating these principles satisfactorily.

In reality the only source of international law is the *consensus*

omnium. Whenever it appears that all nations constituting the international community are in agreement as regards the acceptance or the application in their mutual relations of a specific rule of conduct, this rule becomes part of international law and becomes one of those rules the observance of which the Lausanne Convention recommends to the signatory States.

Among the foremost of these rules there is one which is paramount and which does not even require to be embodied in a treaty: that is the rule sanctioning the *sovereignty of States*. If States were not sovereign, no international law would be possible, since the purpose of this law precisely is to harmonize and reconcile the different sovereignties over which it exercises its sway.

Turkey also admits, as I have just stated, the principle of the sovereignty of States, but she applies it beyond its due limits making its action to be felt in a field which is outside its proper scope.

By virtue of sovereignty such as we understand it, every State has jurisdiction to sentence and punish the perpetrators of offences committed within its territory; indeed, this is a question of public security, and of public order, which a State cannot ignore without neglecting its duty as a State, and one which arises whatever the nationality of the delinquent may be.

But, outside the territory, the frontier having once been traversed, the right of States to exercise police duties and jurisdiction ceases to exist; their sovereignty does not operate, and crimes and offences, even in the case of those inflicting injury upon the States themselves, fall normally outside the sanctioning force of their courts. *Extra territorium jus dicenti impune non paretur*.

That is the principle upon which case-law in the United States is based (see Cutting case) and which appears to have been sanctioned by the Treaty of International Penal Law signed at Montevideo on January 23rd, 1889, between the Argentine Republic, Bolivia, Paraguay, Peru and Uruguay. Many other States in their international legislation also admit the principle of the exclusively and absolutely territorial character of criminal jurisdiction: that is the case in Great Britain, and it was also the case for a long time in France: *the right of inflicting punishment*, the *Cour de cassation* declares in its judgment of January 10th, 1873 (Daloz, 1873, 1. 41), *is derived from the right of sovereignty, which does not extend beyond the territorial limits*.

It is true that of late years new rules have penetrated into the penal legislation of various countries. It is now, by a noteworthy extension of territorial jurisdiction, readily recognized that a person may be prosecuted before the courts of his own country for an offence committed abroad either against a compatriot or against the institutions, security or credit of the State of which he is a national. (See especially Articles 5 and 7 of the French Code of procedure for trial.) But this extension, which is not even always confined to nationals, and which has, properly speaking, nothing to do with the principle of the sovereignty of States in criminal matters, which it may rather be said to contradict, is explained by special considerations entirely irrelevant to the *Lotus* case, and this extension, to obtain its full force *and to become a rule of international law*, would require, as has been pointed out by the United States Department of State in its report on the Cutting case, "the general consent of the nations or a special convention"; moreover, the reasons of expediency on which it is based are themselves very debatable in law.

The criminal jurisdiction of a State therefore is based on *and limited by* the territorial area over which it exercises sovereignty. This is the principle, and it is an indisputable principle of international law.

But what happens to this principle when the offence committed takes place not on *terra firma*, which is subject to the sovereignty of the State occupying it, but on the high seas outside the zone of territorial waters over which it is generally held that a State exercises rights of police and jurisdiction?

Here we come face to face with another and equally definite principle of international law: *the principle of the freedom of the high seas*. The high seas are free and *res nullius*, and, apart from certain exceptions or restrictions imposed in the interest of the common safety of States, they are subject to no territorial authority. Since, however, it is impossible to allow free scope to all the enterprises and attacks which might be undertaken against the persons and property of those voyaging upon the seas, it has appeared expedient to extend to merchant vessels on the high seas the jurisdiction of the authorities of the State whose flag they fly. These vessels and their crews are answerable only to the *law of the flag*, a situation which is often described by saying, with more or less

accuracy, that these vessels constitute a detached and floating portion of the national territory. The effect of this is to exclude, just as much as on the national territory itself, and apart from certain exceptional cases, the exercise of any jurisdiction other than that of the flag, and in particular that of a foreign port at which a vessel may touch after the commission of some offence on the high seas. (Rules drawn up at The Hague by the Institute of International Law in 1908.)

This principle has been fairly frequently applied in international cases, especially in collision cases (see the precedent of the *Costa Rica Packet* referred for arbitration to my illustrious colleague, Frederic de Martens); and it would not appear that there is any reason for not applying it in the case of the *Boz-Kourt* and *Lotus*. Assuming that the destruction of the former vessel was the result of a wrong manœuvre, of an error in navigation, of an offence committed on the high seas, for which Lieutenant Demons was responsible, it is the national law, the law of the flag under which he was sailing, which alone is applicable to him, since there is in this case no territorial law or territorial sovereignty.

The Turkish Government has not denied the jurisdiction of the *law of the flag* as regards the repression of offences committed on the high seas, especially in the case of collision between two vessels of different nationality; it has not denied that the French Courts have the right of convicting and sentencing Lieutenant Demons who was officer of the watch on board the *Lotus* at the time of the collision, should his guilt appear to them established. But the Turkish Government holds that this jurisdiction is not exclusive. And it alleges various circumstances arising in the particular case and various theories of international law, with a view to showing that Turkey and its courts possess concurrent rights of jurisdiction, in virtue of the general right of sovereignty which Turkey assumes even outside her own territory.

It has been argued by Turkey—but the judgment which has been read does not go as far as that—that the jurisdiction claimed by the courts of Stamboul in the *Lotus* case was justified by the *right of protection* possessed by every State in respect of its nationals even beyond its frontiers. Turkey contends that the fact that the offence committed on the high seas by a foreigner should have injured some of her nationals suffices to give her power and to make it her duty to punish the offence. And this is precisely what happened in the

Lotus case. This system, which has found favour in the positive legislations of some countries, is not in itself contrary to international law, but it is outside the scope of international law: it does not in itself constitute a principle of international law capable of overcoming the principle of the *freedom of the seas* and that of the *law of the flag* which is the corollary of the former. None of the legislative or judicial evidence cited by Turkey in support of the right of protection of nationals, establishes the existence of such a principle, and it is moreover in contradiction with the rules consistently applied by courts in maritime cases for the repression of crimes and offences committed on the high seas and especially in collision cases. It will suffice for me to allude in this respect to the arbitral award given by M. de Martens in the case of the *Costa Rica Packet*, to which I have already referred.

Other titles to jurisdiction, intended to support the argument based on Turkish sovereignty, have been put forward by the representatives of that country. They endeavoured to *localize* the offence, which it was sought to punish, upon the vessel which sustained the injurious result, that is to say on the vessel run down. They argued that it was the *Boz-Kourt* which perished in the collision of August 2nd, 1926, and that it was the passengers and sailors of that vessel who met their deaths. The offence therefore produced its effects in the *Boz-Kourt*, i.e., according to the generally accepted legal fiction, on Turkish territory. Consequently, it was quite natural that the Turkish Courts, that is to say the territorial courts, should exercise jurisdiction. The error here is clear and it has been fully brought out in the famous decision given in the *Franconia* case by the British Court for Crown Cases Reserved. In fixing the place where an offence has occurred, it is not to the place where the offence, often contrary to any reasonable anticipation, produces its injurious effects upon persons or things, that attention must be directed, but solely to the place where the punishable act has been committed and where the person responsible for that act was at the time when it was committed; it is there that the offence has really taken place.

Now, in the case of the running down of the *Boz-Kourt* by the *Lotus*, the errors of navigation, with which Turkey has charged the officer of the latter vessel, and which may have led to the destruction of the Turkish collier and to the loss of several lives, could only have taken place at the spot where Lieutenant Demons exer-

cised his command, i.e. in the vessel responsible for the collision. He never set foot on board the *Boz-Kourt*, and there is nothing to show that it was on board the ship and not at the bottom of the sea, into which they were no doubt immediately thrown by the force of the impact, that the seamen and passengers perished.

It is therefore on the vessel responsible for the collision and not on the vessel run down that the disaster should have been localized, if any importance were attached to such localization from the point of view of jurisdiction ; the law and jurisdiction of the flag under which Lieutenant Demons sailed would then apply perfectly naturally. But that is only a secondary consideration, which, in the case before the Court, tends further to support the jurisdiction of the *law of the flag*.

What makes the application on the high seas of the *law of the flag* in respect of occurrences on board a merchant vessel essential, is the fact that such a vessel is not directly subject to any territorial sovereignty, but that on the other hand, regarding it as an extension of territory, it constitutes an organized entity, subject to the discipline and control of the State whose flag it flies, which State therefore is both more qualified and has more interest than any other to ensure the maintenance of order on board.

The Turkish Government had finally endeavoured to link up the proceedings taken against the French officer with a theory of "connexity" (*connexité*), making these proceedings dependent upon those taken in pursuance of Turkish law against the Turkish officer of the *Boz-Kourt* ; does not the close connection existing between these two sets of proceedings taken as a result of one and the same act in different countries, require indeed, in the interests of justice, that they should come before the same judge ? It is easy to reply, although the Court has not seen fit to consider this question, that "connexity" implying extension of jurisdiction only takes effect in relations between two or more courts of the same instance, sitting within the boundaries of the same State and that, according to an opinion unanimously held, this conception is completely foreign to international relations, by reason of the modifications which it would involve both as regards the law applicable to offences alleged to be "connected" (*connexes*) and the system of penalties which would be applicable to them. "Connexity" (*connexité*) is a rule of internal convenience applicable in those States which have included it in their codes of procedure ; it is ineffective outside their frontiers.

None of the various grounds advanced by Turkey in support of her claim to jurisdiction—some of which have been held to be well founded by the Court—therefore remain to authorize the penal measures taken against the French officer Demons, in consequence of the loss of the *Boz-Kourt*.

Two principles of international law clearly emerge from the controversial doctrine and contradictory judicial decisions which have been invoked as authority by both Parties in the course of the hearings :

1. First of all, there is the *principle of the sovereignty of States* in criminal matters, not a universal, undefined, unlimited sovereignty such as Turkey adduced, but a sovereignty founded upon *and limited* by the territory over which the State exercises its dominion, that is to say, territorial sovereignty.

2. Secondly, there is the principle of the *freedom of the high seas*, including the application of the *law of the flag* which is its corollary.

The Turkish Government, in proceeding against the French Lieutenant Demons upon the basis of acts which had taken place outside Turkish territory on a vessel flying the French flag has disregarded those two fundamental principles of international law ; it has consequently acted in contravention of Article 15 of the Lausanne Convention. And my conscience as a jurist and judge does not allow me to subscribe to the approval bestowed upon its action by the Court.
